

STATE OF NEW YORK

8076--A

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sens. SKOUFIS, SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT directing the commissioner of education to conduct a study of recess held in elementary schools in kindergarten through grade six

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. The commissioner of education is directed to conduct a
2 study of recess held in charter and public elementary schools from
3 kindergarten through grade six. Such commissioner shall conduct a survey
4 as part of such study which shall include, but not be limited to:
5 (a) information pertaining to the number of schools currently offering
6 recess;
7 (b) the length of such recess and how often it is provided;
8 (c) information pertaining to the location of such recess, including
9 whether such recess is held indoors or outdoors;
10 (d) if schools provide a dedicated space for such recess;
11 (e) if the school's recess is supervised or unsupervised;
12 (f) what the barriers are to providing recess; and
13 (g) if such recess is structured and if students are offered time for
14 unstructured play.
15 § 2. On or before December 31, 2025, the commissioner of education
16 shall prepare a report of their findings from such study. Such report
17 shall be forwarded to the governor, the temporary president of the
18 senate, the speaker of the assembly, the senate minority leader, the
19 assembly minority leader, and the chairpersons and ranking members of
20 the senate and assembly committees on education. Such report shall also
21 be released on the public website of the New York state education
22 department.
23 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13091-05-5